

NET FIT WHOLESALE CONTRACT MELIA HOTELS INTERNATIONAL

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TOUR OPERATOR
365 TRAVEL CO., LTD
PERIOD: 01 November 2019 - 31 October 2020

HOTEL:

SOL BEACH HOUSE PHU QUOC, VIETNAM

(Company name: Duc Viet Limited Company,
Zone 1, Duc Viet Tourist Area, Bai Truong Complex, Duong To Commune,
Phu Quoc Island, Kien Giang Province, Vietnam
Tax Code: 1700 449191)



RATE PLANS AND CONDITIONS

Room rates are inclusive of breakfast

Room Type	High Season (VND)	Peak Periods (VND)	Low Season (VND)
	01.11.19 - 21.12.19 07.01.20 - 23.01.20 02.02.20 - 29.02.20	22.12.19 - 06.01.20 24.01.20 - 01.02.20	01.03.20 - 31.10.20
Beach House Room	VND 2.326.000	VND 3.619.000	VND 2.021.000
Big Beach House Room	VND 2.514.000	VND 3.830.000	VND 2.209.000
Xtra Beach House Room	VND 2.820.000	VND 4.136.000	VND 2.514.000
Xtra Beach House Junior Suite	VND 3.313.000	VND 4.629.000	VND 3.008.000
Xtra Beach House Suite	VND 4.136.000	VND 5.428.000	VND 3.830.000

- Rates are per room per night basis for Single / Double occupancy
 - o From 01.11.2019 – 31.03.2020: Rates are applicable to all markets **except for British, Scandinavian**
 - o From 01.04.2020 – 30.10.2020: Rates are applicable to all markets.
- Rates are inclusive of 5% Service Charge and 10% Government Tax
- Rates are inclusive of daily buffet breakfast The Kitchen Restaurant
- Rates quoted are in VND and non-commissionable
- Guests exceeding the Single/Double occupancy will be subject to additional charges
- Rates are for transient FIT travelers only and not applicable for group bookings, series, charters or reservations of 05 rooms and above
- **Peak season:**
 - o Minimum length of stay during Peak Season is 3 nights' consecutive stay.
 - o Overlapping stay on 30 Dec & 31 Dec 2019, Lunar New Year 25,26,27Jan 2020 must book whole period of mentioned date along with peak season minimum stay.

Your contracted rates will be activated in our Reservations System after the Resort receives the signed copy of this contract from the Tour Operator.

AIRPORT TRANSFER (FOR INDIVIDUAL BOOKINGS ONLY)

The distance from Phu Quoc International Airport to the Resort is 08 kilometers and takes approximately 10 minutes.

The Resort is offering complimentary round trip airport transfer by shuttle bus as schedule.

All airport transfer arrangements must be made at point of reservations or at least three (03) Days prior to guest arrival together with full arrival and departure flight details of guests.

SPECIAL OFFER

1. HONEYMOON OFFER

HONEYMOON OFFER	All year round	- Honeymoon cake - Complimentary upgrade to next room type for a minimum stay of 4 consecutive nights - "Honeymoon" must be mentioned at point of reservation - Combinable with Bonus Night and Early Bird Offer.
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2. EARLY BIRD OFFER

EARLY BIRD OFFER	Normal season (01.03.20 – 31.10.20)	- 10% discount for advance booking with 30 days prior to arrival. - 15% discount for advance booking with 45 days prior to arrival.
	High Season (01.11.19 - 21.12.19 07.01.20 - 23.01.20 02.02.20 – 29.02.20)	- 10% discount for advance booking with 45 days prior to arrival. - 15% discount for advance booking with 60 days prior to arrival.
	Peak Season (22.12.19 - 06.01.20 24.01.20 – 01.02.20)	- 10% discount for advance booking with 60 days prior to arrival. - 15% discount for advance booking with 90 days prior to arrival.

Note:

- Applicable to all room types.
- Applicable to Room, Breakfast and Extra Bed if booked simultaneously.
- Not applicable to any other supplement charges or meal rates.

3. BONUS NIGHT

BONUS NIGHT OFFER	Normal season (01.03.20 – 31.10.20)	- Stay 4 pay 3: Stay 4 consecutive nights gets the last night Complimentary. - Stay 8 pay 6: Stay 8 consecutive nights gets the last two nights Complimentary. - Stay 12 pay 9: Stay 12 consecutive nights gets the last three nights Complimentary.
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Note:

- Pre-payment required 30 days before check-in, non-refundable.
- No amendment on arrival dates.
- Non-combinable with Early Bird Offer.
- Applicable to Room, Breakfast and Extra Bed if booked simultaneously.
- Not applicable to any other supplement charges or meal rates.

ALLOTMENT

Room Type	Peak Periods		High Season		Low Season	
	22.12.19 - 06.01.20 24.01.20 – 01.02.20		01.11.19 - 21.12.19 07.01.20 - 23.01.20 02.02.20 – 29.02.20		01.03.20 - 31.10.20	
	Allotment	Cut-Off date	Allotment	Cut-Off date	Allotment	Cut-Off date
Beach House Room	On Request	30	On Request	21	On Request	7

Allotment Conditions:

- All FIT bookings will be taken from the company's allotment automatically
- The company allotment must be utilized first and further bookings will be on a request basis and subject to availability
- Allotment productivity will be reviewed at the end of each term during the quarter.
- The resort has the right to stop allotment based on productivity, materialization and debtor's status in consultation with the company. The stop allotment announcement will be informed you in advance
- Close allotment before cut-off date will be informed in advance and effective immediately.
- All unused room allotments will be automatically released based on cut-off date.
- Any request for additional rooms must be approved by the resort, which may decline approval at its absolute discretion.

Black-out date:

We will notify you of "black-out date" situation (if any) before cut-off date and be effective instantaneously upon announcement. In this case, bookings will be confirmed availability.

THIRD PERSON SUPPLEMENT

The room rates are not inclusive of the following services and are payable as indicated below:

One extra bed inclusive of breakfast	Adult (12 years old & above)	VND 1.292.000
One extra bed inclusive of breakfast	Child (4 - 11 years old)	VND 1.057.000
One child sharing existing bed with parents and inclusive of breakfast	Child (4 - 11 years old)	VND 235.000
One child sharing existing bed with parents and inclusive of breakfast	Infant (under 2 years old)	Free of charge

Extra Bed refers to sofa bed or roll-away bed.

MEAL SUPPLEMENT

COMPULSORY DINNER		
New Year's Eve – 31 Dec 2019	Adult (12 years and above)	VND 2.232.000
Lunar New Year's Eve – 24 Jan 2020	Child (4 - 11 years old)	VND 1.292.000
	Infant (under 4 years old)	Free of charge

Meal / Person	Adult (12 years old & above)	Child 4 - 11 years old)	Infant (Under 4 years old)
Half Board (Choice of lunch / dinner) (All other periods except dinners on 31 Dec 2019, 24 Jan 2020 please refer our festive rates.)	VND 587.000	VND 293.000	Free of charge for maximum one child sharing existing bed with parents

Above meal prices are per person per meal, excluding accommodation and beverages.

- Half Board includes a choice of either lunch or dinner.
- Please refer Third Person Supplement for buffet breakfast for additional persons in room.
- Above rates are Net in VND and non-commissionable.

ROOMING POLICY

Room Type	Total Inventory	Size (sqm)	Bed Type	Maximum Occupancy Per Room	Bathtub
Beach House Room	110	33-35	King / Twin	3A OR 2A + 2C	No
Big Beach House Room	104	46- 54	King / Twin	3A OR 2A + 2C	Yes
Xtra Beach House Room	58	54-56	King / Twin	3A OR 2A + 2C	Yes
Xtra Beach House Junior Suite	10	67	King	3A OR 2A + 2C	Yes
Xtra Beach House Suite	02	108-124	King	3A OR 2A + 2C	Yes

Note:

- A stands for Adult (12 years old & above) and C stands for Child (11 years old & below)
- Extra Bed is required for 3rd person. It is upon request and subject to availability.
- Connecting and adjoining rooms are available and upon availability please check the different possibilities with our reservations department.
- Physically challenged rooms are also available and subject to availability.

CONTRACTUAL TERMS

1. INVOICING PROCEDURE AND METHOD OF PAYMENT

Unless credit facilities have been approved by the Hotel's Financial Controller / Melia Hotels International and voucher payment has been accepted by our organization, all bookings must be prepaid by credit card (in which case we need written authorization) or by bank transfer in VND to the attention of the Accounts Department of the Hotel.

Should there be any bank charges for transfers, these will be paid by the tour operator. A copy of the bank transfer should always be sent by fax/e-mail to hotel indication invoices or the names of the clients and dates of stay and amount which is been paid.

In case of credit facilities have been approved, the amount corresponding to invoices will be paid by the "agency" within a maximum of 21 days after the departure of the clients and in VND

N.B: If prepayment is not received, we will be forced to charge the client directly.

- a) For all the stays we require full deposit prepayment is below schedules. If pre-payment or voucher is not received, no rooms will be definitely confirmed.

FULL PRE-PAYMENT

Period	Peak Season	High Season	Low Season
	22.12.19 - 06.01.20 24.01.20 – 01.02.20	01.11.19 - 21.12.19 07.01.20 - 23.01.20 02.02.20 – 29.02.20	01.03.20 - 31.10.20
Days	30	21	7

2. Rate Plan

The taxes, duties and public charges of direct or indirect application, which may arise in relation this agreement, which are not foreseen by the state, the autonomous-community or the local regulations at the signature of this document, and which are therefore not expressly mentioned on it, will be at the client's expense.

The hotel reserves the right to adjust the rate plans herein, should extraordinary inflation, devaluation or VAT changes or city tax, or in case of other factors that warrant subsequent rate adjustment.

The hotel may, under exceptional circumstances, close the allocation agreed in this contract by means of a written note sent to the tour operator.

3. Dynamic Pricing / BAR Rate

The Agent acknowledges that the Agent or its buyers/onward distributors /sub-agents is not allowed to decrease the Gross Rate for the Accommodation in Hotel Only reservations (the Selling Rate).

The Company acknowledges that the Agent or its buyers/onward distributors /sub-agents may decrease the Gross Rate for the Accommodation in flight package Sales in order to remain competitive within the relevant market (the Selling Rate).

The Company hereby permits the Agent and/or its buyers/onward distributors /sub-agents to reduce the Gross Rate. Any such reduction in the Gross Rate to derive the Selling Rate will be deducted from the Commission due to the Agent had the Agent and/or sub-agent not decreased the Gross Rate

The agent will limit the distribution of rate or inventory its buyers/onward distributors /sub-agents (online/offline) to the distribution of hotel rooms in combination with flight, train or rental car (dynamic packaging).

4. Static Pricing / FIT Net Rates

The Agent will ensure that none of its buyers/onward distributors /sub-agents are supplying contracted rates through their own website or through integrations of their reservation system with any OTA, OTA network, travel website, travel metasearch website or any other online channel.

The agent will limit the distribution of rate or inventory its buyers/onward distributors /sub-agents (online/offline) to the distribution of hotel rooms in combination with flight, train or rental car (dynamic packaging).

The Agent must assure and control their buyers/onward distributors /sub-agents to work exclusively with own brands selling directly to the customers or sub-agents that are selling directly to the customer. Buyers/onward distributors /sub-agents must exclude from their distribution network any agency that provides rates or inventory to other third party agencies (B2B agencies).

Company may communicate from time to time a list of intermediates that must be excluded from Trade Connected Channels (currently Otel, Rumbo, Olotel).

5. Paid Search Advertising Requirements

- I. These paid search requirements apply by Agency to the use of paid search advertising offered by companies operating search engines (including but not limited to Google, Bing and Yahoo), travel information sites (including but not limited to Trip Advisor), or other third party operated web sites which allow this form of advertising ("Paid Search").
- II. Keywords: In its keyword purchasing activities for paid advertisement in search engines, Agency agrees not to purchase an advertising or sponsorship position triggered by the keywords identified by a company's brand or the name of a hotel managed, operated or franchised by company where each combination of words taken as a whole. However, Agency is free to use the Specified Keywords for online marketing that are (a) used in a generic context, (b) names of events, places, regions, cities, areas, buildings, monuments, or other landmarks, or (c) other generic terms.

For the avoidance of doubt, nothing in this Agreement shall preclude Agency or its Trade Connected Channels from using any of Company's or Participating Hotels' brands in the source code of the Websites, providing such use is not intended to unfairly influence organic search results. Melia Hotels International and the Participating Hotels hereby acknowledge and accept that without such use, the Participating Hotels cannot be properly advertised.

- III. Agency is not allowed to book Keywords combinations:
 - a) Meliá Hotels International Brand terms and their misspellings
e.g: Melia, Meliá, Melià, Gran Melia, ME, Paradisus, Tryp, Ininside, Sol, ...
 - b) Meliá Hotels International Hotel Names terms and their misspellings
e.g.: Gran Melia don pepe, Melia Berlin, Melia de mar
 - c) Meliá Hotels International Hotel Names terms without Brand terms and their misspellings,
e.g.: hotel don pepe, hotel white house and all the combinations between this
 - d) Brand and Hotel Names terms with other terms and their misspellings, e.g.: hotel Gran Melia, Melia offer, Gran Melia booking

6. Onward Distributors

The Agent must assure and control their buyers/onward distributors /sub-agents to work exclusively with own brands, selling directly to the customers or sub-agents that comply with any clause of this agreement.

7. Reservation procedure for accommodation

- a) All bookings must be sent in writing to the resort's reservations department and include customer's name, number of person, date of arrival and departure, number of rooms, room type requested and Tour Operator / Agent booking ID number.
- b) A corresponding written notice, booking order or valid voucher must support all reservations. Reservation is valid if reconfirm in writing with reference number by Sol Beach House reservation agent.
- c) Verbal availability does not imply a confirmation as availability.

d) Check in / Check out:

Check-in: from 14.00h although the hotel will attempt to provide the rooms for the clients arriving before that time

Check-out: 12.00h noon. Any later check-out will be considered and charged accordingly as one more night stay.

Early Check-in & Late Check-out: Please note that we are unable to guarantee any early check in neither any late check out until the arrival date or the departure date because both are subject to the hotel availability and the following charges:

Early check-in:

100% of the applicable room rate if check-in is before 6.00am

50% of the applicable room rate if check-in is between 6.00am-12.00pm

Late check-out:

50% of the applicable room rate if check-out is between 12.00pm-6.00pm

100% of the applicable room rate if check-out is from 6.00pm and later

8. Payment Instruction

The Hotel requires a deposit in advance to guarantee a particular reservation. To guarantee an individual reservation, a guest must either send a credit card authorization form authorizing the Hotel to charge the room deposit of all night's rate and applicable taxes to the provided credit card or make a bank transaction to hotel's bank account to the attention of Hotel's Account Department.

Hotel shall not charge any additional mandatory charges to any guest folio or to the Master Account if not specified by the person that made the Reservation.

The hotel will issue a proforma invoice for transaction purposes only. The original invoice will be sent by post to the Master Account.

Reservations are considered as confirmed ONLY when the total cost of accommodation fees are paid to the hotel before customer's arrival date.

In the event of no-show or late cancellation, the pre-paid amount will not be refunded.

Hotel accommodation charges can be paid by the following methods:		
BY CREDIT CARD		
Visa, Master Card, and American Express.		
Credit card authorization form must be filled up and sent by email or fax to the hotel.		
Your monthly credit card statement will indicate payment made to "Duc Viet Limited Company"		
BY BANK TRANSFER		
Transfer must be made without any transaction charges for the hotel. All bank cost must be paid by the person issuing the transaction		
The name, booking number and details of the payment should be clearly indicated when completing the bank transfer.		
Customer billing details should be provided with reservation confirmation		
The hotel will send a proforma invoice for billing purposes only. The original invoice will be sent by email or by post to the billing address.		
SOL BEACH HOUSE PHU QUOC BANK ACCOUNT INFORMATION		
	Vietnamese	English
ACCOUNT HOLDER	Công ty TNHH Đức Việt	Duc Viet Limited Company
BANK NAME	Vietinbank Chi nhánh Bắc Sài Gòn	Vietinbank Saigon North Branch
BANK POSTAL ADDRESS	35-37 Khu phố 1, Thị trấn Củ Chi, huyện Củ Chi, TP.HCM	35-37 Street 1, Cu Chi Town, Cu Chi District, Ho Chi Minh City

SWIFT CODE	ICBVNVX948
ACCOUNT NUMBER VND (Vietnamese Dong)	115002619544
ACCOUNT NUMBER USD (American Dollar)	112002628058

9. Cancellation, NO SHOW and Early Departure Policy

- In case you need to cancel a reservation, please inform us about the change in travel plans between date and please be advise of the notice period as stated below as cancellation charges may be applicable.
- No show or early departure: the hotel will charge 100% of the total cost of the stay, minimum 1 room night on the first night.
- The hotel reserves the right to apply special cancellation policy in case of city big congresses or special events.

Notice Period	Peak Periods	High Season	Low Season
	22.12.19 - 06.01.20 24.01.20 – 01.02.20	01.11.19 - 21.12.19 07.01.20 - 23.01.20 02.02.20 – 29.02.20	01.03.20 - 31.10.20
31 days	No charge	No charge	No charge
22 to 30 days	50% total room charge	50% total room charge	No charge
15 to 21 days			
08 to 14 days	100% total room charge	100% total room charge	50% total room charge
04 to 7 days			100% total room charge
Within 03 days			
No Show			
Shorten Stay			

10. Brochure Review

Please note that all materials must be reviewed by the Hotel prior to publication. Rates must be published according to the terms and conditions stipulated in this agreement. Failure to submit brochures for REVIEW PRIOR TO PRINTING could result in cancellation of allocation or withdrawal from promotional offers.

The tour operator will display in any Tour Programme Brochure that features the hotel at the rates herein agreed, a suitable photograph and description of the hotel.

The tour operator will provide the hotel two copies of each brochure or tour programme in which the hotel appears prior to the commencement date of the programme.

Please note that new pictures available please update your brochures with the most beautiful pictures of the hotel.

Picture Gallery, presentation and video

Please find below the following link with the hotel information.

Photo link: <https://drive.google.com/open?id=1hgQ9qNyEyKx-hkZG2yWF77W9BxgvvNGL>

Presentation: <https://drive.google.com/open?id=19OoyoRw75FqhW8T2vqDPxhcUBeb3qm8w>

Video: <https://www.youtube.com/watch?v=JTBcuNs4VW4>

11. Validation or Termination

- a) Contracts will be only considered valid once the hotel has received a signed copy of the contract and the attached letter within 30 days of issue. Failure to sign this contract could result in reservations being denied.
- b) Either party can unilaterally terminate this contract upon 30 days' written notice to the other party.
- c) Tour operator/agency cannot sell to the public through its or other entities' web sites to inferior prices than the ones stated by this contract, after adding a 25% minimum of mark up.

12. Resort contact

Accepted for & on behalf of MELIA HOTELS INTERNATIONAL / Sol Beach House Phu Quoc		Accepted for & on behalf of 365 TRAVEL CO., LTD
Nguyen Manh Cuong Managing Director	Raul Mateo Lapuente General Manager	Date & Company Stamp
Signature	Signature	Signature

CC: FC, Reservations, FOM, Accounting and Sales